

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, MAY 28, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**WELLS FARGO BANK, N.A. v. JIN H LUO
CASE NO. CL24-05696**

Motion to Vacate Notice of Conditional Settlement and Restore Case to Active Status

TENTATIVE RULING:

This case is restored to active status. A dismissal hearing is scheduled for September 21, 2026 at 1:30 p.m.

Defendant JIN H. LUO has never appeared in this action. Although personally served on August 15, 2025, Defendant has never filed a responsive pleading nor was his default taken.

On December 23, 2025, Plaintiff filed a notice of conditional settlement indicating that the parties had reached an agreement and that dismissal could occur no later than July 16, 2027.

Plaintiff now alleges a default in the settlement agreement and requests the case be restored to active status. Plaintiff's request is GRANTED.

SPARKS SMITH ELECTRIC v. INDUSTRIAL SERVICES SOLUTIONS
Case No. CL26-00578

Petition to Compel Arbitration

TENTATIVE RULING

The petition of Defendants NICK KALLIOS and INDUSTRIAL SERVICES SOLUTIONS, LLC ("ISS") to compel arbitration is GRANTED.

Plaintiff's claims against both KALLIOS and ISS are based on the "Electrical Services Agreement" ("ESA") entered into by plaintiff and KALLIOS on December 12, 2024. The ESA appears to have been drafted by Plaintiff and is on Plaintiff's letterhead. The ESA contains a binding arbitration clause that applies to the dispute that gave rise to plaintiff's claims in this case. The location for the services is 3948 Teal Court, Benicia, CA 94510. Declarant Tammy R. Page attests that this is the location of business ISS. Plaintiff acknowledges that invoices were addressed to KALLIOS and ISS and mailed to the 3948 Teal Court location. (Opposition, p. 4, Exh. A.)

Although the titles of Plaintiff's arguments seem to suggest that ISS could not compel arbitration, the body of Plaintiff's opposition seems to acknowledge that the ESA is enforceable against ISS under the principle that KALLIOS signed the EAS as an agent for ISS which subsequently ratified the agreement and accepted benefits under the agreement. Clearly, Plaintiff's claims against KALLIOS and ISS are intertwined.

If the agreement is enforceable against ISS, as plaintiff acknowledges, so too is the arbitration clause contained in the agreement. Plaintiff is equitably estopped from contending that the agreement is enforceable against ISS, but that the arbitration clause in that same agreement is not. (*Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209, 226, fn. 9.)

Further, even if ISS is not an actual "party" to the ESA, ISS was a third party beneficiary of the ESA which had an arbitration clause. A third party beneficiary nonsignatory may compel arbitration against a party to an agreement. (*Ronay Family Limited Partnership v. Tweed* (2013) 216 Cal.App.4th 830, 839.)

Defendants requested attorney's fees on this petition, but they cited no legal authority for the award and any such claim would be the exclusive province of the arbitrator.

MORAN v. DIAZ
Case No. CU24-09224

Demurrer to First Amended Cross-Complaint filed by Cross-Defendants MORAN and FORD; Demurrer to First Amended Cross-Complaint filed by Cross-Defendant ALVAREZ GUARDERAS

TENTATIVE RULING

On June 2, 2025, EDUARDO DIAZ ("DIAZ") filed a cross-complaint against Cross Defendants Patricia Moran, Teresa Ford and Teri Alvarez. On July 3, 2025, DIAZ filed a first-amended cross-complaint (1ACC).

On July 17, 2025, plaintiffs Moran and Ford filed a demurrer to the 1ACC which was set for hearing on April 27, 2026. On January 14, 2026, Guarderas also filed a demurrer to the 1ACC which was set for hearing on March 4, 2026. On March 3, 2026, Department 22 continued Guarderas' demurrer so that it could be heard with the Moran and Ford demurrer set for April 27, 2026.

On March 12, 2026, the case was reassigned to Department Eight.

Demurrer filed by MORAN and FORD to First through Ninth Causes of Action

The demurrer of MORAN and FORD to the 1ACC is SUSTAINED IN PART and OVERRULED IN PART.

In adjudicating a demurrer, a court is to consider only matters that appear on the face of the pleading or that may be judicially noticed. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318). Therefore, the court did not consider various factual disputes submitted by the parties that do not appear on the face of the first amended cross-complaint or that may not be judicially noticed.

First, Second and Third Causes of Action

The demurrer to the first, second and third causes of action for breach of contract, common counts and quantum meruit are SUSTAINED WITH LEAVE TO AMEND to the extent it is based on the contention that the 1ACC does not make clear that DIAZ has standing to bring a number of the causes of action that appear to belong to his partnership, DC Pacifico, who is not a party or cross party to this action.

Cross-complainant did not include DC Pacifico as a cross-complainant or indicate that any of the causes of action were being brought on its behalf. A partnership may be formed by conduct and agreement. (Corp. Code § 16202). A partnership may sue or be sued in the name by which it is known. (CCP § 369.5). The court grants leave to amend to include DC Pacifico as a cross-complainant as appropriate.

To the extent that DIAZ contends that any of these causes of action belong individually to him rather than the partnership DC Pacifico, the 1ACC is uncertain and requires further amendment.

The court finds that the 1ACC does not allege whether the contract with cross-defendants was oral, written, or implied by conduct. This court sustains the demurrer with leave to amend under CCP Section 430.10(g) to the extent it is based on this ground.

Fourth Cause of Action

The demurrer to the fourth cause of action for unjust enrichment is SUSTAINED WITHOUT LEAVE TO AMEND. There is no recognizable cause of action for unjust enrichment in California law. (*City of Oakland v. Oakland Raiders* (2022) 83 Cal.App.5th 458, 477). The court notes that the 1ACC alleges a cause of action for quantum meruit in which unjust enrichment could potentially be recovered.

Fifth and Seventh Causes of Action

The demurrer to the fifth and seventh causes of action for fraud and conspiracy to commit fraud is SUSTAINED WITH LEAVE TO AMEND. The 1ACC alleges facts indicating cross-defendants MORAN and FORD promised to pay DIAZ for his work but had no intention of paying DIAZ. But DC Pacifico is the party with standing to allege this claim.

With respect to allegations that Defendants subsequently cut DIAZ out of the project and separately hired his partner, the allegations do not allege sufficient facts to state a cause of action for fraud or conspiracy committing fraud. The elements of fraud are (a) a misrepresentation (false representation, concealment or nondisclosure); (b) knowledge of falsity (or scienter); intent to defraud, i.e. to induce reliance; (d) justifiable reliance; and (e) resulting damage. (*Geraghty v. Shalizi* (2017) 8 Cal.App.5th 593, 597.) Subsequent facts are not indicative of conduct to induce justifiable reliance.

Sixth Cause of Action

The demurrer to the sixth cause of action for tortious interference with contract is SUSTAINED WITHOUT LEAVE TO AMEND as to the contract between Defendants and DC Pacifico. Cross-defendants may not be liable for interference with their own contract.

The demurrer is OVERRULED to the extent it is based on interference with the partnership contract between DIAZ and Contreras. The 1ACC makes a variety of allegations such as separately hiring Contreras outside of the partnership (1ACC ¶¶ 14, 20), conspiring with Contreras to directly hire subcontractors (1ACC ¶ 18) and conspiring with Contreras and Fredy Acosta Garcia-DRO to cut Diaz out of the contract and terminate communication with Diaz (1ACC ¶¶ 14-18).

Eighth and Ninth Causes of Action

The demurrer to the eighth cause of action for civil theft and ninth cause of action for conversion is SUSTAINED WITHOUT LEAVE TO AMEND.

The allegations in the first amended cross-complaint that cross-defendants paid partner Contreras instead of partner DIAZ do not constitute theft or receipt of stolen property. (*Hueso v. Select Portfolio Servicing, Inc.* (S.D. Cal. 2021) 527 F.Supp.3d 1210, 1229, and *Lacagnina v. Comprehend Systems, Inc.* (2018) 25 Cal.App.5th 955, 969). Likewise, conversion is the wrongful exercise of dominion over the property of another. (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1405.) Payment to one of the DC Pacifico partners rather than the other does not give rise to a claim for conversion against the contracted party by the unpaid partner. The partnership must resolve its own conflicts among the partners.

Demurrer filed by GUARDERAS

The demurrer of GUARDERAS to the 1ACC is SUSTAINED IN PART and OVERRULED IN PART.

In adjudicating a demurrer, a court is to consider only matters that appear on the face of the pleading or that may be judicially noticed. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318). Therefore, the court did not consider various factual disputes submitted by the parties that do not appear on the face of the first amended cross-complaint or that may not be judicially noticed.

Fourth Cause of Action

The demurrer to the fourth cause of action for unjust enrichment is SUSTAINED WITHOUT LEAVE TO AMEND. There is no recognizable cause of action for unjust enrichment in California law. (*City of Oakland v. Oakland Raiders* (2022) 83 Cal.App.5th 458, 477). The court notes that the 1ACC alleges a cause of action for quantum meruit in which unjust enrichment could potentially be recovered.

Fifth and Seventh Causes of Action

The demurrer to the fifth cause of action for fraud and seventh cause of action for conspiracy to commit fraud is SUSTAINED WITH LEAVE TO AMEND. As to GUARDERAS, the 1ACC alleges GUARDERAS conspired with MORAN and FORD to cut him out of the project by subsequently separately hiring DIAZ's business partner Contreras. (1ACC ¶ 52.)

The elements of fraud are (a) a misrepresentation (false representation, concealment or nondisclosure); (b) knowledge of falsity (or scienter); intent to defraud, i.e. to induce reliance; (d) justifiable reliance; and (e) resulting damage. (*Geraghty v. Shalizi* (2017) 8

Cal.App.5th 593, 597.) Subsequent facts are not indicative of conduct to induce justifiable reliance.

DIAZ does not allege facts to show that GUARDERAS engaged in a misrepresentation to induce his personal reliance (or the reliance of DC Pacifico) upon which he then justifiably relied to his detriment.

With respect to conspiracy to commit fraud, the elements of civil conspiracy are (1) the formation and operation of the conspiracy; (2) a wrongful act in done in furtherance of the conspiracy; and (3) resulting damage to plaintiff. (*Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 510.) As to formation of the conspiracy, two or more persons must agree on a common plan to commit a tortious act. (*Kidron v. Movie Acquisition Corp.* (1995) 40 Cal.App.4th 1571, 1582.)

The 1ACC alleges facts indicating cross-defendants MORAN and FORD promised to pay DIAZ for his work but had no intention of paying DIAZ. But DC Pacifico is the party with standing to allege this claim. Nothing in the 1ACC alleges that GUARDERAS was a participant in the alleged original decision to commit fraud.

To the extent that DIAZ's claims as to the fifth and seventh causes of action are for himself personally, rather than Di Pacifico, the 1ACC is uncertain.

Sixth Cause of Action

The demurrer to the sixth cause of action for tortious interference with contract is SUSTAINED WITH LEAVE TO AMEND IN PART and OVERRULED IN PART. The 1ACC alleges two contracts: the contract between DC Pacifico and cross-defendants' MORAN and FORD and the contract between DIAZ and Contreras. DIAZ does not have personal standing as to the DC Pacifico contract, but does as to the contract between himself and Contreras.

Eighth Cause of Action

The demurrer to the eighth cause of action for civil theft and ninth cause of action for conversion is SUSTAINED WITHOUT LEAVE TO AMEND.

The allegations in the 1ACC that cross-defendants paid partner Contreras instead of partner DIAZ do not constitute theft or receipt of stolen property. (*Hueso v. Select Portfolio Servicing, Inc.* (S.D. Cal. 2021) 527 F.Supp.3d 1210, 1229, and *Lacagnina v. Comprehend Systems, Inc.* (2018) 25 Cal.App.5th 955, 969). Likewise, conversion is the wrongful exercise of dominion over the property of another. (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1405.) Payment to one of the DC Pacifico partners rather than the other does not give rise to a claim for conversion against the contracted party by the unpaid partner. The partnership must resolve the conflicts between the partners.

Leave to Amend

The court grants DIAZ fifteen (15) days' leave from the date notice of this order is served to file a second amended cross-complaint in accordance with the court's ruling.

FRANCISCO MAGAN RAMIREZ et al. v. ROGER COX CASE NO. CU24-09307

Motion to Appoint Successor Guardian Ad Litem

TENTATIVE RULING:

On December 5, 2024, Alejandra Jocelyn Magana Reynoso was appointed as guardian ad litem for minor Eliabeth Magana Camacho.

While a settlement in the underlying personal injury case was reached over a year ago, Plaintiff's counsel has lost contact with Ms. Camacho who has been unresponsive despite diligent efforts by counsel to reach her. The court finds good cause to remove Ms. Camacho as guardian ad litem and to appoint Francisco Magana Ramirez as successor guardian ad litem.

The court will process the lodged order forthwith. Plaintiff's counsel shall file the petition for minors compromise forthwith.

VANLEUVEN v. DGDG 18, LLC, ET AL. Case No. CU26-00433

Petition to Compel Arbitration

TENTATIVE RULING:

The unopposed petition to compel arbitration is GRANTED.

The action shall be stayed as to Defendants DGDG and CAPITOL ONE AUTO FINANCE until arbitration is completed. (Code Civ. Proc. § 1281.4.) Arbitration review is set for **May 27, 2027 at 8:30 in Department 8**. Defendants shall initiate arbitration in the next 15 calendar days.

Defendant DGDG established, and Plaintiff admitted in her complaint, that Plaintiff entered into a retail installment sales contract with Defendant DGDG to purchase a used vehicle. The retail agreement contains an arbitration clause invoking the Federal Arbitration Act ("FAA").

DGDG contends that Plaintiff's claims against Defendant are different than her claims related to a service contract or bad repairs against VICTORY and USWC. Given these differences, it does not appear necessary to stay the civil action in order to secure full relief for Plaintiff as inconsistent decisions do not appear to be at issue.

As to CAPITAL ONE, the lender stands in the shoes of the dealer and the outcome of the arbitration will be conclusive as to the lender. (See *Pulliam v. HNL Auto Inc.* (2022) 13 Cal.5th 127, 134; *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, 786 [equitable estoppel]; *Rowe v. Exline* (2007) 153 Cal.App.4th 1276, 1287 [equitable estoppel].)

Although labeled a request for “public injunctive relief,” this overbroad prayer is not a barrier to arbitration. Based upon the nature of the claims raised in the complaint, the claims are focused on harm to plaintiff and are appropriate for damages not public injunctive relief and do not implicate the *Broughton-Cruz* rule. (See *Clifford v. Quest Software* (2019) 38 Cal.App.5th 745, 755.)

Jessica Fleshman v. City of Fairfield
Case No. CU23-01799

City of Fairfield’s Motion to Continue Trial

TENTATIVE RULING:

CITY OF FAIRFIELD’s (“FAIRFIELD”) motion to continue trial is DENIED. FAIRFIELD moves to continue the trial after one of the two assigned trial attorneys unexpectedly left the law firm.

The law firm retained to represent FAIRFIELD has 20+ attorneys. Ms. Hurtado gave notice to her law firm’s managing partner on April 14, affording 71 days to secure a replacement to assist the other assigned trial attorney. Per moving party, none of the 20+ attorneys employed by the law firm is available to assist in the 25-day trial due to other prior client commitments.

Notably, this is the second trial date set for this case. A prior trial management conference was conducted following which the trial was vacated following a conditional settlement which later fell through.

The moving papers do not establish that all other attorneys in the retained law firm are committed on each day of the scheduled trial, although some minor and brief overlap for individual attorneys may exist. Additionally, the fact that an assigned trial attorney is actually in trial is good cause for a continuance. But the concern that a trial attorney might be in trial is not.

Moving party also indicated an intent to associate another experienced litigator to the case, but that the litigator had a conflicting trial commitment. There are many employment litigation firms in proximity to Solano County given its proximity to Sacramento and the Bay Area. It is unlikely that between April 14 and the filing of this motion on May 1 that no other qualified employment litigation attorney could be identified to associate into this case.

In light of FAIRFIELD's concern that a single trial counsel could not handle a trial of this duration (although there is only a single judicial officer), the court provided a detailed daily trial calendar which shows several dates that the court is not available to be in session during the first two weeks of this trial. Of the 25 estimated days for trial, the first three weeks are partial weeks with only 2 days each week reserved for jury trial. Of the remaining weeks, only 3 weeks are scheduled for 4 days per week while 2 weeks are scheduled for 3 days. This is a significant amount of down time during the trial that counsel may use to be prepared. To this end, the court ordered the parties to meet and confer and establish a daily witness schedule, especially given the number of Evidence Code section 776 proposed witnesses and the operational needs of a fire department.

While the court appreciates the change in circumstances related to a second assigned trial counsel is not ideal, it does not render confirming the trial unfair and is not good cause to continue the trial under these circumstances.

Trial Management Conference – Tentative Rulings

Below please find the Court's tentative rulings in anticipation of the Trial Management Conference scheduled May 28, 2026 at 9:00 a.m.

The court has previously provided a proposed trial calendar which will be reviewed.

A. Statement of the Case:

The court intends to provide the following statement to jurors:

Plaintiff Jessica Fleshman is a Battalion Chief with the City of Fairfield Fire Department. Plaintiff alleges that she has been subjected to a hostile work environment due to harassment and/or discrimination based upon her gender. She further alleges she was retaliated against for reporting the hostile work environment to her employer.

Defendant City of Fairfield denies that Plaintiff has been subjected to discrimination or harassment or that Plaintiff was subjected to a hostile work environment based upon her gender. City of Fairfield further denies that Plaintiff has been retaliated against based upon her report of a hostile work environment.

B. Plaintiff's Trial Management Statement and Motions in Limine

The court reviewed Plaintiffs Trial Management Statement filed July 24, 2025, the Supplemental Motion in Limine No. 5 filed September 2, 2025, and the Supplemental Trial Management Statement filed September 8, 2025. The court has additionally reviewed Plaintiff's Trial Management Statement filed May 13, 2026 and Plaintiff's motions in limine Nos. 1-5 filed May 13, 2026.

1. **Offer of Proof as to Witnesses:** The offer of proof shows an extraordinary number of non-expert witnesses with significant potential overlap in testimony. Plaintiff estimates approximately 35 hours of non-expert trial testimony. Plaintiff is cautioned to consider the court's inherent authority under Evidence Code section 352 to limit cumulative and repetitive testimony.

2. **Plaintiff's Exhibit List:** The court appreciates and commends the ongoing efforts to meet and confer between the parties. Please meet and confer to determine whether any of Plaintiff's 93 identified exhibits can be classified as joint exhibits and whether admission into evidence can be stipulated. Provide an updated list of joint or stipulated exhibits. (See Amended Trial Management Order 1/9/26 section 5.a., p. 6.)

Given the volume of proposed exhibits, Plaintiff should be prepared at the close of trial to provide 12 binders with sets of admitted exhibits for each juror's use during jury deliberations.

3. **Jury Questionnaire** The court suggests the parties meet and confer on a questionnaire that is **brief and focused**. The logistics of managing an eight page questionnaire are difficult. (Jury services does not have desks or tables for all jurors.) Additionally, it is the court's experience that generic written questionnaires are not useful, i.e. place of birth, schools attended, members of household etc. Priority should be the "for cause" questions and questions involving sensitive information: do you know any of these witnesses? have you experienced discrimination or harassment? Have you been accused of discrimination or harassment? Answers to these questions will permit the parties to complete a paper-screening and determine if potential jurors should be excused for cause before convening for further selection. The other generic questions do not assist in a "for cause" paper screening.

4. **Plaintiff's Motions in Limine:**

Plaintiff's MIL 1: Exclude Investigation of Attorney Renee Jansen. City does not oppose this motion. **GRANTED.**

Plaintiff's MIL2: Exclude opinion testimony whether Plaintiff has been treated differently on the basis of illegal animus. **GRANTED IN PART AND DENIED IN PART.** No witness can testify as to a legal conclusion. Lay opinion is admissible as to whether a co-worker or subordinate was treated differently than other co-workers or subordinates. Parties are advised the court will exercise its discretion pursuant to Evidence Code section 352 to exclude duplicative testimony.

Plaintiff's MIL3: Exclude "Happy Camper" testimony. **DENIED.** Testimony of similarly situated individuals as to the general work atmosphere is relevant to a claim of hostile work environment discrimination, subject to Evidence Code section 352. To the extent that Plaintiff's claims would be buttressed by testimony of similarly situated persons experiencing a hostile work environment, Plaintiff's claims can also be negated by similarly situated persons not sharing the same alleged experience.

Plaintiff's MIL4: Exclude evidence of payments by collateral sources (i.e. workers' compensation). **GRANTED.**

Plaintiff's MIL5: Exclude Defendant's "Fire Operations" Expert. **GRANTED IN PART AND DENIED IN PART.** "Expert" opinion testimony regarding laws

concerning union rights and “best practices” in unionized Fire Departments is excluded. This constitutes testimony concerning the law and only the court may instruct the jury. Expert testimony whether conduct is aggressive and dismissive is excluded. Expert opinion regarding an ultimate fact, i.e. whether a statement was legal or illegal, protected or unprotected, is excluded. The parties were invited to submit proposed pinpoint instruction(s) to address purported protected and unprotected union activity and speech. With respect to expert opinion regarding firefighter training and operations best practices, Plaintiff’s motion in limine is denied. Plaintiff’s issues address the weight but not admissibility of the expert opinions. Defendant is cautioned that should the defense elicit opinion testimony from other non-expert witnesses regarding fire operations and training who appear to have the same or similar experience or specialized knowledge, the court may exclude this witness’s testimony as cumulative pursuant to Evidence Code section 352.

5. Proposed Jury Instructions and Verdict Forms:

The court reserves over jury instructions and verdict forms with the following exceptions:

- a. The court does not use CACI 112
- b. Plaintiff to provide a draft of a completed CACI 2505, 2507, 2523, 3903.
- c. The court agrees with the defense that a special verdict form is more suitable in this case than a general verdict form given the findings the jury will need to make for each cause of action. Plaintiff to provide a draft single special verdict form.

C. Defendant’s Trial Management Statement and Motions in Limine

The court reviewed Defendant’s Trial Management Statement filed July 24, 2025 and Supplemental Trial Management Conference Statement filed August 27, 2025. The court additionally reviewed Defendant’s motions in limine 1-6 filed May 13, 2026.

1. **Offer of Proof as to Witnesses:** The offer of proof shows an extraordinary number of witnesses with significant potential overlap in testimony. Defendant estimates 54 hours in defense testimony. Defendant is cautioned to consider the court’s inherent authority under Evidence Code section 352 to limit cumulative and repetitive testimony.
2. **Defendant’s Exhibit List:** The court appreciates and commends the ongoing efforts to meet and confer between the parties. Please meet and confer to determine whether any of Defendant’s 36 identified exhibits can be classified as joint exhibits and whether admission into evidence can be stipulated. Provide an updated list of joint or stipulated exhibits. (See Amended Trial Management Order 1/9/26 section 5.a., p. 6.)
Given the volume of proposed exhibits, Defendant should be prepared at the close of trial to provide 12 binders with sets of admitted exhibits for each juror’s use during jury deliberations.

3. Defendant’s Motions in Limine:

Defendant's Updated MIL 1: Exclude Plaintiff's claims that the city be held liable for union concerted activity. **DENIED.** It will be the province of the factfinder to determine whether alleged conduct constituted protected or unprotected union activity versus unprotected activity by City employees and supervisors which created or failed to correct Plaintiff from a hostile workplace based upon gender or retaliation. Unlike tort liability, FEHA liability is not based on comparative fault. Jury instructions are appropriate to address Defendant's concern that City not be held liable for union activity.

Defendant's Updated MIL2: Exclude Plaintiff's claims that her peers and subordinates in the department shunned her socially. **DENIED.** The testimony is relevant to Plaintiff's claim of hostile work environment and retaliation for protected conduct. Jury instructions are appropriate to address Defendant's concern that an employer cannot force employees to socialize with one another to avoid FEHA liability.

Defendant's MIL3: Exclude Plaintiff's claims that she suffers from heart palpitations. **DENIED IN PART AND GRANTED IN PART.** Plaintiff is not qualified to express an expert opinion as to causation. She may describe her symptoms she associated with anxiety. A 402 hearing shall be conducted prior to any expert testimony regarding causation related to heart palpitations given the nature of workers' compensation presumptions concerning causation. *The parties shall clarify to the jury that Plaintiff is not seeking damages for any physical injury.*

Defendant's MIL 4: Preclude Plaintiff from claiming she was denied a promotion due to discrimination or retaliation. **GRANTED.** The court understands that in discovery Plaintiff did not make this claim.

Defendant's MIL 5: Preclude Plaintiff from claiming discrimination, harassment or retaliation not identified in her discovery responses. **GRANTED.** Notably, Defendant's MIL refers to the supplemental 2025 discovery responses.

4. **Proposed Jury Instructions and Verdict Form:**

5.

The court reserves over proposed jury instructions and verdict forms.

The court agrees with the defense that a special verdict form is more suitable in this case than a general verdict form given the findings the jury will need to make for each cause of action. Defendant to provide a draft single special verdict form.

Please meet and confer regarding retention of a single court reporter between the parties for each day of trial. The court reporter must be available during jury deliberations for read-back or have prepared a final transcript. An order appointing the reporter pro tem shall be submitted in advance to ensure the reporter is available and qualified. The court will not continue the case due to the absence of a reporter.

Parties shall make arrangements with the courtroom clerk to pre-mark exhibits and to lodge all originals of transcripts prior to trial.

Please reduce all stipulations to writing. The stipulations will be marked as a court exhibit and deemed admitted. Parties to notify the court when they wish the court to read the stipulation to the jury.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002